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# Institutional Wiki

*Every precedent, template, memo and playbook in one searchable repository · The institutional memory of the firm*

| ARTICLES | PRECEDENTS | TEMPLATES | PLAYBOOKS |
|---|---|---|---|
| **284** | **51** | **71** | **19** |
| Indexed | Deal memoranda | All documents | Sector + function |

## Private Credit — Arranger Precedents

18 CLOSED TRANSACTIONS · A$ 1.42B ARRANGED

### Case Study · Aurora Energy Facility · A$ 180M

IC approved 17 Apr 2026 · Private Credit Senior Secured · Upstream Gas · Counsel: Simon Ting + Money Penny

| FACILITY | TENOR | FEES | DSCR COVENANT |
|---|---|---|---|
| A$ 180M @ SONIA+425bps | 5yr bullet + 24mo tail | 1.25% ARR / MOB / RET / TL | ≥ 1.45x quarterly |

***Lesson applied:*** *Tail fee set at 0.50% × 24mo protected A$900K of fee economics through early refinancing. Principle reaffirmed: tail fee is non-negotiable on arranger mandates.*

### Case Study · Titan Critical Minerals · A$ 95M

IC approved 20 Mar 2026 · Development-stage Senior Secured + Equity Earnout · Counsel: Simon Ting + Money Penny

| FACILITY | EQUITY KICKER | FEES | OFFTAKE COV. |
|---|---|---|---|
| A$ 95M SSF | 2% fully-diluted | ARR + MOB + EQY | 85% contracted |

***Lesson applied:*** *Equity earnout on pre-FID development funding is market-standard for critical minerals. Always price development risk separately from base credit risk.*

PRECEDENT · 2025

### Eureka Battery Metals — A$ 110M 5yr bullet

Lithium brownfield expansion. 375bps margin. 2.3x DSCR achieved. Successfully exited Q3 2025 refi at 300bps — tail fee crystallised A$ 550K.

JT 12 Sep 2025

PRECEDENT · 2025

### Meridian Wind Portfolio — A$ 240M 10yr amortising

Operating wind farm refi. Margin 325bps. DSCR 1.85x. Strong structural ESG linkage — first deal with sustainability-linked margin ratchet.

JT 22 Jul 2025

PRECEDENT · 2024

### Sirius Midstream — A$ 85M sub debt

Gas midstream take-out of equity. 750bps sub margin + 1% PIK option. PIK toggled on once; cash-pay resumed Q2 2025.

JT 8 Nov 2024

PRECEDENT · 2024

### Calypso Data Centre I — A$ 320M senior + mezz

Hyperscale DC debt stack. First loss on mezz priced at E+850. Rolled into Fund I Q1 2025.

JT 4 Aug 2024

## Fee Benchmarks — Private Credit Arranger

MEDIAN & RANGE ACROSS 18 CLOSED PRECEDENTS

| SKU | FEE TYPE | MEDIAN BASIS | RANGE | TYPICAL PRECEDENT |
|---|---|---|---|---|
| ACP-FEE-ARR | Arrangement Fee | 1.25% of facility | 1.00% – 1.75% | Aurora, Titan, Eureka |

| SKU | FEE TYPE | MEDIAN BASIS | RANGE | TYPICAL PRECEDENT |
|---|---|---|---|---|
| ACP-FEE-MOB | Mobilisation Fee | A$ 150K flat | A$ 75K – A$ 250K | All mandates |
| ACP-FEE-RET | Retainer Fee | A$ 25K/mo × 6 months | A$ 20K – A$ 40K/mo | All mandates |
| ACP-FEE-TL | Tail Fee | 0.50% × 24mo | 0.25% – 0.75% | Aurora, Eureka (crystallised) |
| ACP-FEE-EQY | Equity Earnout | 1.5% fully-diluted | 1.0% – 3.0% | Titan, Sirius (dev stage) |
| ACP-FEE-SUC | Success Fee | 1.00% of deal value | 0.75% – 1.50% | Helios, Orion |
| ACP-FEE-PLC | Placement Fee | 1.50% of capital placed | 1.25% – 2.00% | Orion, Helios |
| ACP-FEE-CSH | Cash Strip | 2% of FCF (5yr cap) | 1% – 3% | Development-stage |

## Covenant Library — Standard Clauses

CURATED INSTITUTIONAL POSITIONS WITH PRECEDENT

| COVENANT | STANDARD POSITION | FALL-BACK | FREQUENCY | BREACH CONSEQUE |
|---|---|---|---|---|
| **DSCR Maintenance** | ≥ 1.50x | ≥ 1.35x w/ equity cure | Quarterly | Cash swee 75% |
| **Interest Cover** | ≥ 3.00x | ≥ 2.50x | Quarterly | Distribution block |
| **LLCR** | ≥ 1.40x | ≥ 1.25x | Semi-annual | Cash swee block |

| COVENANT | STANDARD POSITION | FALL-BACK | FREQUENCY | BREACH CONSEQUE |
|---|---|---|---|---|
| **Leverage** | ≤ 4.5x Net Debt / EBITDA | ≤ 5.0x (time-limited) | Quarterly | Margin step +50bps |
| **Reserve Tail** | ≥ 1.75x remaining reserves | ≥ 1.50x | Semi-annual | Amortisatio acceleratio |
| **Insurance** | Full project + CAR + PI | As lender-acceptable | Annual cert | Event of de |
| **Change of Control** | Mandatory prepayment | Consent w/ margin step-up | Event-driven | Mandatory prepaymen |
| **MAC** | Market-standard MAC | Narrow MAC w/ carve-outs | Event-driven | Drawstop / event of de |

# Counsel Opinion Library

EVERGREEN POSITIONS FROM SIMON TING (BORROWER-SIDE) & MONEY PENNY (LENDER-SIDE)

OPINION · SIMON TING

### Cross-default acceptance on sub debt

Resist cross-default against unrelated exposures. Acceptable only where (i) > 25% capital stack already pledged, and (ii) borrower-level default definition, not sponsor-level.

**Simon Ting** 12 Feb 2026

OPINION · MONEY PENNY

### MAC clause scope — private credit

Prefer "business-specific" MAC, not market-wide. Carve out pandemic, geopolitical events already priced. Always include lender-perspective materiality threshold.

**Money Penny** 4 Jan 2026

OPINION · SIMON TING

### Governing law · NSW vs Singapore

Default to NSW for domestic issuers. For APAC cross-border, Singapore arbitration (SIAC) preferred over NSW courts given enforceability. Never agree to PRC governing law.

**Simon Ting** 18 Nov 2025

OPINION · MONEY PENNY

### Equity cure mechanics

Permit a DSCR cure by equity injection, capped at 2 cures in any 4 consecutive quarters, no more than 5 cures over facility life. Cure proceeds must be applied to EBITDA (not debt paydown).

**Money Penny** 2 Oct 2025

OPINION · SIMON TING

### Exclusivity under engagement letters

Standard ACP position: 180-day exclusivity on mandate execution, with matching right during tail period. Exceptions only for pre-existing bilateral investor relationships.

**Simon Ting** 20 Sep 2025

OPINION · MONEY PENNY

### Reserve-based lending · reserve tail definition

Tail = sum of proved reserves outside initial facility scheduling window. Prefer 1P for bank-syndicate facilities, 2P only where reserves are fully offtaken.

**Money Penny** 15 Aug 2025

## Regulatory Primer — Quick Reference

THE RULES THAT SHAPE EVERY TRANSACTION

| REGULATION | JURISDICTION | RELEVANCE | ACP POSITION |
|---|---|---|---|
| **AML/CTF Act 2006** | Australia | KYC on every counterparty + BO | COMPLIANT · full register maintained |
| **Corporations Act · s.708** | Australia | Wholesale / sophisticated | COMPLIANT · s.708(8) + |

| REGULATION | JURISDICTION | RELEVANCE | ACP POSITION |
|---|---|---|---|
| | | investor exemptions | s.708(11) only |
| **Corporations Act · s.911A (AFSL)** | Australia | Arranging carve-outs in Phase 1 | ROADMAP · AFSL targeted Q1 2029 |
| **FIRB** | Australia | Foreign investment notification thresholds | EVENT-DRIVEN · counsel to screen |
| **Privacy Act 1988** | Australia | Personal info retention & breach | COMPLIANT · 7yr retention |
| **OFAC / DFAT Sanctions** | US / AU | Counterparty screening | COMPLIANT · quarterly sweep |
| **GDPR / UK DP Act** | EU / UK | If any EEA/UK LPs or counterparties | EVENT-DRIVEN · disclosures attached |
| **MAS / HK SFC** | Singapore / HK | Cross-border marketing in APAC | PHASE 2 · reverse-solicitation only |